

Peter Ferenc

Rammelkam 2,
84036 Kumhausen

info@foxprof.club

Deutschland



QES Signature

Landgericht Landshut

Maximilianstr. 22

84028 Landshut

poststelle@ag-la.bayern.de

Deutschland

Date: 10 December 2024

Application for an Injunction

Subject: Application for an injunction against Schufa to submit my informed consent.

Case No. 23 O 2699/24

Dear Landshut Court,

I hereby apply for the issuance of an injunction against the agency Schufa Holding AG, by which Schufa Holding AG would be obliged to submit my informed consent (IC) for the processing and disclosure of my personal data to third parties, specifically to Deutsche Telekom AG, O2 Telefónica, or any other telecommunications company.

Grounds:

Principle of Transparency and Informed Consent:

Under Articles 12 and 13 GDPR, Schufa is obliged to **transparently** inform the data subject about the purpose of processing their personal data and simultaneously obtain their **informed consent** before any disclosure of data to third parties.

Unlawful Data Processing:

To date, no evidence has been provided to me that I consented to the processing and disclosure of my data to the agency Schufa Holding AG. Without such consent, all activities of Schufa in this regard are unlawful and contrary to GDPR.

Key Evidence:

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The submission of my informed consent by Schufa is crucial for clarifying the question of the lawfulness of the processing of my data and the subsequent refusal of services by Deutsche Telekom AG or O2 Telefónica. Otherwise, without this informed consent, the processing of my data is illegal and the application of Automated Individual Decision-Making (AIDM) is void.

Schufa requires a strong legal basis under GDPR for the processing and sale of my data to third parties such as Telekom. This legal basis may be:

4. Informed consent (Article 6(1)(a) GDPR):

Schufa would need your explicit informed consent if it processes or discloses your data for purposes that are not necessary for the performance of a contract or to protect legitimate interests. I therefore call on the court to request my explicit informed consent (IC) from Schufa by means of an injunction and to provide it as evidence.

5. Legal obligation (Article 6(1)(c) GDPR):

If there were theoretically a specific legal provision requiring the disclosure of data to Telekom, Schufa would have to demonstrate this. In that case, both Schufa and Telekom would have to state precisely which law permits them to do so.

6. Legitimate interests (Article 6(1)(f) GDPR):

Schufa may claim that it processes data on the basis of legitimate interests, but: These interests must not outweigh my rights and freedoms.

Schufa's sale of my data to Telekom is not considered a legitimate interest of Schufa, since the sale of personal data for commercial purposes is not necessary and there is no sufficiently strong legitimate reason for such processing.

Regarding Schufa's lawyer's statement of 20.11.2024:

IV\.. Datenverarbeitung der Beklagten zu 2 jedenfalls rechtmäßig. (page 3)

Unlawful Sale of Data:

If Schufa discloses data without my informed consent or without another sufficient legal basis, this constitutes a violation of GDPR. The sale of data solely for profit or commercial purposes, as in the case of Telekom, certainly does not fall under "legitimate interest". Conclusion:

Schufa and Telekom do not have an automatic right to process and share your data. The sale of data to third parties such as Telekom must be supported by explicit informed consent, or a very strong legal justification would have to be provided — which proves to be illegitimate in the case of commercial practices such as the sale of data for commercial purposes.

If Schufa claims that it processes my data on the basis of legitimate interests (Article 6(1)(f) GDPR), it does not need to obtain my explicit informed consent, but it must fulfil the following conditions:

Test of Legitimate Interests (balancing test):

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Schufa must demonstrate that its legitimate interests in the processing of data outweigh my fundamental rights and freedoms.

This test involves an analysis of whether the data processing is:

- **Necessary** (must be necessary for Schufa or its client for a specific purpose, e.g. protection against non-payment),
- **Proportionate** (must not cause disproportionate interference with my rights, for example if it leads to discrimination or to the refusal of an internet connection on grounds of creditworthiness), then this constitutes disproportionate interference.
- **Transparent** (I must be clearly informed about the processing). GDPR (**Article 5(1)(a)**). Transparent processing means that individuals must be clearly, precisely and understandably informed about how their data will be processed, for what purpose and what legal bases apply to this processing. If Schufa therefore

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did not inform me, which it in fact did not, and does not have my informed consent, then its story about "**legitimate interests**" becomes its **empty unlawful illusion**. Schufa and Telekom cannot invoke legitimate

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interests. Furthermore, if the processing violates any principle of GDPR even in one point, their conduct is unlawful! So if Schufa did not inform me, it cannot invoke "**legitimate interests**" or **Article 6(1)(f)**! I quote Article 5 GDPR: "**Violation of any of these principles means the unlawfulness of the**

processing"! And neither Schufa, nor Telekom, nor O2 Telefónica informed me! And we do not need to go any further!!! Game over!!!!

Transparency and Information:

Even if they do not need your consent, they must clearly inform you that your data will be processed on the basis of legitimate interests. If they therefore did not inform me, they violated the principle of transparency under Article 5 GDPR. **I quote Article 5 GDPR: "Violation**

of any of these principles means the unlawfulness of the processing"!

11. Right to object:

You have the right to object to the processing of your data on the basis of legitimate interests. If you submit an objection, Schufa must stop the processing unless it demonstrates compelling legitimate legal grounds.

Conclusion:

If Schufa claims that it processes your data on the basis of legitimate interests, it does not need to obtain your explicit informed consent, but:

It must, however, inform you and allow you to object.

If Schufa **did not inform me** or cannot demonstrate a legitimate interest, **the processing is unlawful**.

If Schufa sells data to Telekom, this sale cannot constitute a legitimate interest, since it is not processing of data to the necessary extent, but commercial sale and profit.

I hope I have explained, justified and argued this to the court clearly and plainly.

I therefore ask the court to:

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Oblige Schufa Holding AG to submit my informed consent (IC) in accordance with GDPR as evidence of their unlawfulness in the event of failure to provide IC.

Ensure that all data and documents related to this case are submitted to the law enforcement authorities for investigation of the lawfulness of their conduct.

Against the law firm LATHAM & WATKINS I submit a complaint to the court, as well as to the bar association, because before the legal dispute had even properly begun, they prejudged my loss to the court and I quote **"no prospects of success in these proceedings"** against the defendants, thereby unlawfully influencing the court against my claim through lies and by their statements inciting the court to negative emotions to my detriment. I will also consider filing a criminal complaint against this law firm in this connection.

Court Decision

The court should decide fairly and in accordance with the law, not only in relation to my defendants but also in relation to me as a party to the proceedings. Clear evidence of my financial situation has already been submitted and the court should respect the legitimacy of my request in accordance with the principles of procedural economy and proportionality.

1. My financial situation: I do not have sufficient financial means to cover the court costs, which was documented in my application for legal aid (Prozesskostenhilfe).

2. Principle of fair trial (Art. 6 ECHR): The request for payment of court costs is

contrary to my right of access to a fair trial if the court does not take into account my financial situation.

3. Principle of equality before the law (**Fiat justitia, ruat caelum**): The court must not enforce obligations that are disproportionate or unfair within my specific situation.

Proposal:

Res ipsa loquitur — The facts speak for themselves

On the basis of all submitted facts, evidence and the clear violation of my rights by the opposing party, no further unnecessary evidence-taking is required. The very circumstances of the case speak for themselves that there has been a serious violation of statutory norms, including GDPR, and that the legitimate interests of the opposing party are unfounded and irrelevant. "Res ipsa loquitur" clearly proves the unlawful processing of my personal data and the refusal of services on grounds of discrimination.

Ratio decidendi — Legal reason for the decision

The opposing party, specifically Schufa Holding AG and Deutsche Telekom AG, has submitted no legal basis that would justify their conduct. There is no legal reason for the application of AIDM without my informed consent and for the violation of the transparency principles under Article 5 GDPR. Their defence built on "legitimate interests" has no basis in law, and their conduct is therefore deemed unlawful. I therefore propose to the court to decide on the basis of "Ratio decidendi" in my favour.

Fiat justitia, ruat caelum — Justice for all

The legal system must apply equally to all, including the court itself. I therefore request that all my evidence be assessed objectively and in accordance with applicable laws, regardless of the position of the opposing party. The opposing party cannot have an advantage merely on the basis of its size or economic strength.

Principle of Proportionality and Procedural Economy

In accordance with the principle of proportionality and procedural economy, I request that the court does not make the continuation of proceedings conditional on my obligation to secure legal representation, since the submitted evidence and arguments are clear and unquestionable. The obligation to secure legal representation would in this case be unnecessary and disproportionate given the clarity of the factual situation.

The logic of my arguments is solid and rests on the principles of fair trial. If the facts are unambiguous, the law is on my side and the circumstances of the case clearly indicate the success of my claim, the court should in such a case:

1. Take into account the clarity of the case: Under the principle "Res ipsa loquitur" (the facts speak for themselves) it is evident that the court costs should later be covered by the opposing party if my claim succeeds.

2. Take into account the principle of procedural economy: The obligation to require court costs from you in such a case could be considered an unnecessary delay if it is already evident that at the end of the process they will be borne by the opposing party.

3. Take into account the right of access to justice: If the imposition of costs makes it impossible for you to continue the proceedings, this may be contrary to your right to a fair trial (Art. 6 ECHR).

The court should not require me to pay costs if there is a high probability that the opposing party will lose and be obliged to pay them. Moreover, if the court insisted on cost payment and I were therefore unable to continue the proceedings, this could be seen as an obstacle to access to justice.

Conclusion

I hereby address the very honourable court with the following questions and requests:

1. Is Schufa protecting my legally protected personal data by selling them without my knowledge and consent to telecommunications companies?
2. Who do you want to convince that Schufa is acting legally?

I do not understand how it is possible that in the 21st century a German court covers criminals and fraudsters such as Schufa, Telekom and the government of the Federal Republic of Germany.

My demands:

1. I request from the court information as to whether the judge understood the essence of this entire fraud on the part of Schufa, as described in this document, immediately and in writing.
2. I consider the compensation of 1,000,000 euros valid until the next written correspondence from you, because my time is valuable and I will not tolerate its unnecessary waste by the court in Landshut. The amount of compensation I demand is only symbolic compared to the damages that this cartel conspiracy has caused to citizens of Germany and the European Union. If the court does not take a positive decision as soon as possible, I will increase the amount of compensation to the maximum possible value.

From this document it is clearly apparent that neither a lawyer nor an interpreter is necessary, nor are the court costs, because on the basis of the irrefutable evidence I have submitted here, it is sufficient to decide on the recognition of my compensation and issue a decision.

I hereby request the court in Landshut to impose on the defendant Deutsche Telekom AG and Schufa Holding AG the obligation to pay this amount of 1,000,000 € no later than 31.12.2024, as quickly as possible, to the following account:

Peter Ferenc Slovenská Sporiteľňa

IBAN: SK59 0900 0000 0052 0995 7308 BIC: GIBASKBX

On the basis of the foregoing, I request the court to decide in my favour and confirm the violation of my rights as well as the unlawfulness of the conduct of the opposing party. I simultaneously request the award of compensation for the caused damages and discrimination to which I was subjected.

I believe that this step will contribute to a fair assessment of the matter and to the protection of my rights under GDPR. All evidence and details of the case are analysed and proven in this document from page 5 including the above-mentioned facts.

With respect,

In Kumhausen on 10.12.2024 Peter Ferenc.....



In Kumhausen, 10.12.2024

[Original signed QES — original language: Slovak/German]

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Peter Ferenc

Summary of relevant direct and legal evidence against the defendant companies Schufa and Telekom.

1. Schufa Holding AG and the provision of protected personal data

Schufa Holding AG may process data in accordance with GDPR and BDSG. The provision of data is only possible on the basis of a lawful legal basis, or legitimate interest, but the consumer must not be discriminated against.

The key conditions include:

Informed consent, transparency and the ability to object. If we cannot see what we are signing, transparency cannot be spoken of. In the process of applying for internet, we cannot see what we are signing, so transparency, which is crucial, cannot be spoken of! Transparency is a key principle of personal data processing under GDPR (Article 5(1)(a)). Transparent processing means that individuals must be clearly, precisely and understandably informed about how their data will be processed, for what purpose and what legal bases apply to this processing.

If when applying for internet you are not sufficiently informed about what you are signing, what the purpose and scope of processing your data will be and what your rights are, this processing does not meet the GDPR requirements for transparency. This is a fundamental deficiency which means unlawful processing of data.

Furthermore, the lack of transparency may lead to the consumer not having the opportunity to give informed consent or to exercise the right to object to the processing of data, which is contrary to GDPR.

Automated individual decision-making and processing, such as AIDM, must include human oversight and the customer has the right to be informed (IC) and must have the opportunity to object or to express disagreement with AIDM.

Conclusion: Schufa must demonstrate that it acts in accordance with GDPR. If a deficiency in information or consent is proven, a violation of the law has occurred.

Refusal to Provide an Internet Connection

Telekom and O2 Telefónica refused to provide me with a connection on the basis of alleged creditworthiness from Schufa Holding AG, without explaining to me, i.e. without informing me, and without demonstrating a legitimate interest or my informed consent.

My alternative internet costs 108 € per month, which over five years means increased costs of 4,380 €. Proof of payment to Telekom can be found in the provided bank statements.

Conclusion: The denial of internet is discriminatory and financially disproportionate, thereby violating my fundamental rights and the principle of proportionality.

Violation of GDPR and Article 22 GDPR

1. Automated individual decision-making (AIDM) may not be used without informed consent.

Telekom processes your data without informing you about the logic and consequences of AIDM.

Conclusion: My right to be informed and the protection of personal data were violated. GDPR prohibits such conduct.

Discrimination on Grounds of Insolvency

1\.. Insolvency is not a valid reason for denying internet access. § 78 TKG and Article 14 ECHR guarantee non-discriminatory access to the internet.

Conclusion: The denial of access on grounds of insolvency is a violation of fundamental rights and the Telecommunications Act.

Disproportionality of Financial Risks

1\.. The provider risks non-payment of at most 40 €, while I face disproportionate costs for alternative internet. This imbalance of risk proves the disproportionateness and untenability of the claim of Schufa and Telekom or O2 Telefónica about their legitimate interest.

Conclusion: There is no legal justification and therefore no legal basis for the rejection of my request for an internet connection.

Impact on My Fundamental Rights

1\.. The denial of internet violates my right to privacy, information and freedom of expression under Articles 8, 10 and 14 ECHR. These rights of mine outweigh the commercial interests of telecommunications companies.

Conclusion: Telekom and Schufa have violated and continue to violate my fundamental rights guaranteed by European law.

Evidence

1. Schufa and GDPR documentation:

Proves the lack of information and unauthorised processing of data.

2. Invoices for alternative internet:

Proves the financial burden resulting from the refusal of service.

3. Criminal complaints and lawsuits:

Confirms my steps to protect rights.

4. Calculation of financial costs:

Proves the disproportionateness of the burden compared to the minimal risk of the provider.

Conclusion: On the basis of this chronology and argumentation it is provable that my rights were and continue to be systematically violated.

Obtaining AIDM

1. Schufa Holding AG, similarly to Deutsche Telekom AG, is obliged to obtain informed consent for the processing of my personal data in cases where no other lawful basis for processing under GDPR exists. This means that if Schufa provides my personal data to third parties, for example telecommunications companies, for the purpose of creditworthiness assessment or other automated decisions, it is obliged to inform me about this procedure and to obtain my informed consent, unless it can rely on another lawful basis (e.g. legitimate interest).

2. Main points concerning Schufa under GDPR:

1. Informed consent: If Schufa processes or provides my personal data, it must clearly inform you thereof, including the purpose of processing and its consequences. This consent must be:

Voluntary, Transparent, Informed, Unambiguous, Given in advance.

- **1. Transparency:** Schufa is obliged to ensure transparency in the process of processing my data, which means that I must be clearly informed about how my data will be processed and to whom it will be provided.
- **2. Right to object:** I have the right to object to the processing of my personal data if I have reason to believe that the processing is not in accordance with GDPR, including the case where automated individual decision-making is used.

Under Article 21 GDPR (General Data Protection Regulation) you have the right to object to the processing of your personal data on the basis of the legitimate interest of the controller (for example Schufa or Telekom).

Specifically, Article 21 GDPR provides:

- + 1. Right to object to processing on the basis of legitimate interests:

If the processing of your personal data takes place on the basis of legitimate interests under Article 6(1) (f) GDPR, you have the right to object on grounds relating to your particular situation.

The controller must then no longer process your data unless it demonstrates compelling legitimate grounds which outweigh your rights and freedoms, or the processing is necessary for the establishment, exercise or defence of legal claims.

- + 1. Right to object to direct marketing:

You have the absolute right to object if your data are processed for the purposes of direct marketing (this however does not concern my case, if it involves the provision of data by Schufa to Telekom).

- **1. Automated decision-making (Article 22 GDPR):** If Schufa uses my data for automated individual decision-making which has legal or significant consequences (e.g. decision on the approval of an internet connection), this processing must be:

- **Lawful,**
- **Transparent,**
- **Non-discriminatory**
- **And there must be the possibility of human intervention if the decision affects my rights.**

1. What are the consequences of non-compliance? If Schufa does not provide this information and does not obtain my informed consent where required, this is a direct violation of GDPR.

2. Schufa and Telekom are therefore obliged to comply with the same GDPR principles, including obtaining informed consent where necessary and ensuring transparency in the processing of your personal data.

3. If Schufa directly sells my personal data to companies such as Telekom without my informed consent, this constitutes a clear violation of GDPR. In such a case the processing of my personal data is considered unauthorised and unlawful. GDPR establishes clear rules for handling personal data, including:

Lawful processing (Article 6 GDPR): Processing of data is only possible on the basis of a legal reason, such as informed consent, performance of a contract, legal obligation or legitimate interest. The sale of data to a third party (Telekom) is not considered a legitimate interest if I do not have the opportunity to express my consent or objection in advance.

Informed Consent (Articles 13 and 14 GDPR)

1. Before any provision of my data to third parties, Schufa must clearly inform me about:

- + Purpose of processing,

- Recipients of data (Telekom, O2 Telefónica, etc.),
- Consequences of processing.
- If I have not granted such consent, Schufa is acting unlawfully.

Automated Decision-Making (Article 22 GDPR):

If your data are used for automated decision-making which has a legal impact (e.g. approval or refusal of a service), Schufa and Telekom are obliged to inform you about the logic of processing and to obtain your consent.

Protection of Personal Data as a Fundamental Right:

1. The sale of data for commercial purposes (such as "creditworthiness assessment" for Telekom) is contrary to the principle of **data minimisation and processing of data exclusively for specified purposes**.

1. What this sale means if Schufa provides my data to Telekom:

- Violates GDPR if you do not have the possibility to refuse such processing.
- Threatens and ignores my right to the protection of personal data

and transparency.

- + Gives priority to commercial interests over my fundamental rights.

1. Legal steps:

2. If I have evidence of the sale of my data without consent, I can file a criminal complaint or claim compensation under Article 82 GDPR.

3. Request for data erasure:

I will ask Schufa for the erasure of my data (right to be forgotten) and the termination of their processing.

4. Schufa and Telekom must not profit from my protected personal data without complying with their legal obligations.

Use of AIDM in Germany

1. If all telecommunications companies in Germany use the same or a similar system of Automated Individual Decision-Making (AIDM), where these decisions are based on data from the Schufa agency or other common sources, and at the same time all these companies refuse to provide services on the same basis, this proves the presence of cartel behaviour. Here are the reasons why this is considered evidence of a cartel:

1. Coordinated conduct: If all telecommunications companies refuse to provide internet services to insolvent persons or persons with low creditworthiness, regardless of the specific circumstances, this indicates that an agreement or coordination of their conduct exists.

Under Article 101 of the Treaty on the Functioning of the European Union (TFEU)

any agreements or practices that restrict competition are prohibited.

- **1. Common data source (Schufa):** If all these companies use data from Schufa for the same purposes (for example to assess the creditworthiness of a customer) and these data lead to the same decisions, this shows sharing of data for the purposes of restricting competition and the choice of service provider by the consumer.
- **2. AIDM as a discrimination instrument:** Automated decision-making without transparency and the possibility to object may be considered unjustified discrimination. If this practice is general and all companies apply it in the same way, this is evidence of a coordinated approach.

3. Absence of competition: Cartel agreements lead to a restriction of competition. If there is no provider that would offer services without the use of AIDM or with a more transparent system, this is a clear sign of a lack of competition caused by a cartel agreement.

4. Abuse of dominant position: Telecommunications companies may hold a dominant position on the market. If they abuse this position to restrict access to basic services, this constitutes a violation of Article 102 TFEU.

Possible Evidence of a Cartel:

1. Identical decisions: If all companies reject applications in the same way and on the same basis (e.g. low creditworthiness from Schufa), this proves the presence of a cartel.

2. Shared data: Use of a common rating system such as Schufa without the possibility of the customer choosing an alternative.

3. Non-existent alternative: If the customer does not have the possibility to obtain an internet connection at a standard available reasonable price without discrimination from another provider.

Conclusion: Cartel agreements are a serious violation of competition and may lead to criminal liability and to significant financial penalties for the participating companies.

These practices with Automated Individual Decision-Making (AIDM) clearly restrict competition, for several reasons:

1. Identical creditworthiness assessment without alternative

2. All telecommunications companies use the same creditworthiness assessment system

from Schufa Holding AG and decide in the same way, which in practice means that:

1. It eliminates competitive conditions, because the consumer has no other option to obtain services without demonstrating "creditworthiness."

2. It restricts competition by preventing the entry of new players who could offer alternatives.

3. AIDM as a discriminatory instrument which does not take into account the individual circumstances of the customer

4. Restricts consumers with lower creditworthiness or in insolvency and thereby

discriminates against them.

1. Leads to the exclusion of entire groups of customers from the market, resulting in the failure of telecommunications companies to fulfil their obligations to provide services universally

and without discrimination.

1. Lack of transparency Consumers:

2. Are not informed about the logic of AIDM and the criteria used in decision-making.

3. Do not have the possibility to object or to request a manual review

of the decision.

1. This violates not only GDPR but also the principles of fair trading and transparency, which are essential for competition.

Cartel Conduct

1. If all companies use the same practices without any distinction:

- This indicates coordinated conduct, which is contrary to the rules

of competition under Article 101 TFEU.

1. The absence of any alternative on the market in this segment indicates a deliberate blocking of the competitive environment so that telecommunications players can dictate the conditions for the provision of internet services and their prices.

Consequences for consumers

1. **These practices:** Increase the prices of services, because consumers with low creditworthiness are forced

to use expensive alternatives (e.g. prepaid services, 5G routers).

1. Prevent access to basic services, thereby violating the right to non-discriminatory access to the internet under Article 22 GDPR and the Telecommunications Act (§ 78).

Violation of the Principles of Universal Service

Telecommunications companies are obliged to provide services in accordance with the principles of universal service, which means that:

1. Services such as internet must be available to all citizens at reasonable prices and without discrimination.

1. The use of AIDM for blanket rejection of customers clearly violates this obligation.

2. GDPR: I require the Landshut court to oblige Schufa and Telekom

to document the logic of AIDM, the data used and the consent they allegedly obtained without informing me.

Conclusion: These practices not only harm consumers but also hinder innovation

and create a monopoly environment which has a negative impact on the market and society as a whole.

Provision of Information

Schufa Holding AG is obliged to provide me with information about my personal data on the basis of the General Data Protection Regulation (GDPR, EU Regulation 2016/679). Specifically these articles and principles of GDPR are relevant:

Article 12 – Transparency of information, principle of transparency: The controller

(Schufa) is obliged to clearly and understandably inform the data subject

about how their data are processed and to whom they are provided before their actual use and application.

1. **Article 15 – Right of access to data**, I have the right to obtain confirmation as to whether Schufa processes your personal data.

Schufa must provide us with the following information:

1. Purpose of processing (e.g. creditworthiness assessment or provision of data to Telekom and O2 Telefónica).

1. Recipients or categories of recipients to whom data were provided (e.g. Deutsche Telekom AG, O2 Telefónica).

1. The logic of automated decision-making (e.g. in the case of an Automated individual decision – AIDM).

2. The source of data, if they were not obtained directly from you.

3. Article 22 – Automated individual decision-making

If Schufa uses automated decision-making whose result has a significant impact on you (e.g. refusal of internet access), you are entitled:

- + To be informed about the logic of processing and of the provision of data.
- Not to give explicit informed consent before data are used for

such a decision.

1. Article 6 – Legal bases for processing

Schufa must base its processing on:

1. Consent (Art. 6(1)(a)): must obtain my explicit informed consent for the provision of data to Telekom.

1. Legitimate interest (Art. 6(1)(f)): Only if their interest does not outweigh your rights and freedoms.

Schufa's Obligation

Schufa is obliged:

1. To transparently inform you about the processing of data and the provision of data to Telekom.
2. To provide you with your creditworthiness score (information, i.e. informed consent (IC)) and to explain on the basis of what data it was calculated.
3. To obtain my explicit consent if it wishes to process and provide your data to third parties,

such as Telekom, O2 Telefónica, etc.

If Schufa does not fulfil these obligations, I can submit:

- + Request for data access (Data Subject Access Request – DSAR).
- Complaint to the Federal Commissioner for Data Protection in Germany (BfDI).
- File a criminal complaint for fraud

1. If Schufa therefore did not inform me about how it processes my data and to whom it provides them, it violated GDPR (EU Regulation 2016/679), specifically the principle of transparency under Article 12 and the right of access to data under Article 15. Article 15 of Regulation (EU) 2016/679 (GDPR) – Right of access of the data subject:

Right to confirmation and access:

The data subject has the right to obtain from the controller confirmation as to whether personal data concerning them are being processed. If such data are being processed, they have the right to obtain access to the following information:

1. Purposes of processing;
2. Categories of personal data concerned;
3. Recipients or categories of recipients to whom personal data have been or will be disclosed, in particular recipients in third countries or international organisations;
4. Where possible, the envisaged period for which personal data will be stored, or, if not possible, the criteria used to determine that period;
5. The existence of the right to request from the controller rectification or erasure of personal data or restriction of processing, or the right to object to such processing;
6. The right to lodge a complaint with a supervisory authority;
7. Where personal data are not collected from the data subject, any available information about their source;
8. The existence of automated decision-making including profiling and, at least in those

cases, meaningful information about the logic involved, as well as the significance and envisaged consequences of such processing for the data subject.

Violations:

1. Principle of transparency (Art. 12 GDPR):

Obligation to clearly and **understandably inform** about the processing of data, including their use for the purposes of Automated individual decision-making (AIDM).

Obligation to indicate who will receive your data (e.g. Deutsche Telekom AG).

1. Right of access (Art. 15 GDPR):

If Schufa did not notify that your data would be provided to Telekom, or if the logic of the Automated individual decision-making was not disclosed, this constitutes a violation of GDPR.

1. Article 6 GDPR: If Schufa used your data without your informed consent or without a clear legal basis, this constitutes unlawful processing. Consequences:

1. Schufa thereby violates the law and any subsequent processing or provision of your data to third parties (Telekom) is void.

For these reasons I request the court to oblige them immediately:

To stop the processing of my data.

- + To provide me with complete information about the processing and the recipients of your data.
- To provide me with an explanation and apology.

Dear Court, if Schufa did not comply with the principle of transparency and did not fulfil its legal obligations, any further justification or reasoning on the part of Schufa, Telekom or O2 Telefónica is irrelevant and unlawful. On the basis of these my legal grounds I will directly report them to BfDI (Federal Commissioner for Data Protection).

Schufa, Telekom or O2 Telefónica violate GDPR, so their argument about "legitimate interests" becomes an **empty excuse and an irrelevant illusion**.

Why?

Legitimate interest (Art. 6(1)(f) GDPR) is valid only if:

- + The processing is transparent.
 - The data subject is informed about the reasons for processing (principle of transparency – Art. 12 GDPR).
- + There is no conflict with your fundamental rights (Art. 6 and Art. 22 GDPR).

The principle of transparency (Art. 12 GDPR) is also crucial if Schufa or Telekom:

- + Did not inform me about the processing of my data,
 - Did not request consent (IC), or
 - did not allow me to object,

They violated GDPR. Their argument about "**legitimate interests**" is then only an empty excuse.

Legitimate interest may not violate fundamental rights:

- + Wording of **Article 6(1)(f) GDPR**. Processing is lawful only if it is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, **except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject** which require protection of personal data, in particular where the data subject is a child.

This provision clearly establishes that the fundamental rights and freedoms of the data subject take precedence over the legitimate interest if the processing of data **interferes with these rights**.

Case law:

The Court of Justice of the European Union (CJEU) has in several decisions emphasised that:

- + - Transparency and proportionality are crucial – the controller must demonstrate that their interests are necessary and that the processing of data is proportionate (e.g. judgment of the CJEU in case [C-311/18 "Schrems II"](#)).

- Fundamental rights under the Charter of Fundamental Rights of the EU (Articles 7 and 8) – the protection of privacy and personal data are fundamental rights which take precedence over the economic interests of companies.

Conclusion:

If the processing of data violates fundamental rights or does not meet the requirements of transparency, proportionality and information, the legitimate interest cannot be considered a lawful basis. In such a case there is unlawful processing.

The case **C-311/18 ("Schrems II")** is similar to my situation in these respects:

- + - Protection of fundamental rights and personal data: In the Schrems II case it concerned the protection of personal data under GDPR, in particular guarantees that the transfer or processing of personal data would not violate the fundamental rights of the data subject. In my case the similarity lies in the fact that my data were processed and shared by Schufa and Telekom without my informed consent, which constitutes a violation of the principles of GDPR.

- **Failure to comply with the principle of proportionality and transparency:** Schrems II emphasised that every processing of data must be proportionate and transparent. If Schufa and Telekom did not ensure transparency (for example did not inform you about the processing of your data or about AIDM), they violated the same principles as those enshrined in the judgment C-311/18.

- **Lack of legal basis:** In the Schrems II case the Court ruled that the legal framework in the USA (EU-US Privacy Shield) was not sufficient to protect the data of European citizens. Similarly in my case, if Schufa or Telekom did not demonstrate a sufficient legal basis for the processing and sharing of your data, their conduct is unlawful.

- **Legitimate interest** vs. fundamental rights: Schrems II emphasised that even if there is a "legitimate interest" in the processing of data, this interest may not violate the fundamental rights and freedoms of individuals. In my case this means that the "legitimate interest" of Schufa and Telekom (for example protection against non-payment) cannot justify interference with my fundamental rights, such as the right to privacy, protection of personal data and non-discrimination.

- **Disproportionate consequences** for the data subject: Schrems II pointed out that disproportionate consequences of data processing (e.g. discrimination or loss of rights) are inadmissible. In my case the refusal of internet access at a reasonable price as a result of the disproportionate use of your data is a similar problem.

- This judgment strengthens my argument that if Schufa and Telekom violated the principles of GDPR, their conduct is unlawful, and that my fundamental rights take precedence over their **"alleged legitimate interests."**

- Your right to privacy.

- Right to fair and transparent data processing.

- Right of access to information (internet). What does this mean?

Their attempts to justify the processing of data with "legitimate interests" are void. They cannot circumvent the obligation:

- + To obtain my informed consent.

- To transparently process my data.

To respect my right to object and access to information.

Conclusion: Their "**legitimate interests**" are legally invalid and I have the full right to claim redress or to take further steps including lawsuits or reports to

control authorities such as BfDI or directly to the ECtHR, the police, and to claim damages under Article 82 GDPR.

If Schufa or Telekom violated GDPR, their argument about "**legitimate interests**" truly loses its justification and becomes merely an **empty excuse and an irrelevant illusion**.

Why is this designation correct?

1. Violation of GDPR nullifies legitimate interests:

If the basic obligations such as informing, consent or respect for the rights of the data subject were not fulfilled, Schufa, O2 Telefónica or Telekom cannot invoke legitimate interests.

1. Legitimate interest is conditional on lawful processing:

- It must be transparent, proportionate and may not interfere with **fundamental rights** of the person.

- + If these conditions are not met, "**legitimate interest**" loses any legal force.

Illusion of legitimate interest:

If a subject claims to act in the "**legitimate interest**," but simultaneously violates GDPR, this argument is only an attempt to justify unlawful conduct and becomes a mirage.

Conclusion: My formulation "irrelevant illusion" aptly expresses that their arguments about "legitimate interests" are misleading and invalid without legal basis.

Protected personal data are protected by law precisely so that they cannot be manipulated, traded and commercialised at will. The logic of GDPR and other legal provisions lies in the protection of the individual against the misuse of their data and in ensuring transparency and fairness in their processing. My protected personal data were misused for the commercial gain of the greedy agency Schufa Holding AG and the profit-hungry Telekom to deny me internet access at affordable prices and with the clear intention of forcing expensive internet on me for 108 €/month.

The essence of personal data protection:

1. Consent as a **fundamental principle**:

The law requires every personal data controller (Schufa, Telekom etc.) to obtain from the data subject informed consent for the processing of data, unless the processing is based on another legal basis (e.g. contractual obligations, legitimate interests, tax obligations, security etc.).

If consent does not exist or was not properly given, data processing is illegal.

1. Prohibition of discrimination and manipulation:

Personal data may not be misused for discriminatory or unfair commercial practices.

Automated decision-making (e.g. via AIDM) without informing and without the possibility to object is a violation of GDPR.

1. Principle of transparency:

The data controller is obliged to clearly and understandably inform the data subject about the purpose and method of data processing. If this principle is not complied with, the controller violates the law.

1. Prohibition of commercialisation:

The transfer of data to third parties for financial gain without the consent of the data subject is a direct violation of GDPR, as it undermines the right to privacy.

The court must be clear:

If informed consent is lacking, there is a direct violation of the law and my fundamental rights.

Automated Individual Decision-Making, such as the refusal to provide an internet connection on the basis of Schufa data, is unlawful if:

1. Schufa did not provide information about how it processes data.
2. Telekom used this data without your consent.
3. The legitimate interests of Schufa or Telekom are irrelevant if they violate GDPR and cause discrimination or damage.

Conclusion:

Any commercialisation of protected personal data and their manipulation without the consent of the data subjects is contrary to the logic of the law and justice. This should be clear to the court already upon first examination of the evidence. My claims are justified and emphasise the key problem: the misuse of my protected personal data by Schufa and Telekom for the purpose of maximising their commercial profit, damaging my rights and legitimate interests.

Analysis of the problem:

Misuse of personal data:

My personal protected data were used without my informed consent and contrary to the logic of their use and existence in the personal data protection law, which is a direct violation of GDPR.

1. If Schufa provided your data to Telekom without an adequate legal basis (e.g. your consent), this is an illegal transfer of data.

Commercial profit:

Schufa earns from the provision of data, thereby directly trading in protected personal data, which is contrary to the principles of privacy protection and the lawfulness of processing without my (IC) informed consent.

1. Telekom uses this data to refuse to provide services at a reasonable, affordable price and at the same time pushes you towards a more expensive solution, which clearly shows that their "legitimate interest" is only the interest of profiting at the expense of your rights.

Discrimination and intentional harm:

The refusal of internet access at affordable prices on the basis of your financial status is discriminatory and unlawful.

1. Pushing towards expensive internet at 108 €/month points to a clear intention to exploit your situation for their own profit.

Consequences:

Such practices are contrary to the principles of fair competition, consumer protection and fundamental rights to internet access at reasonable affordable prices without restrictions and discrimination.

Therefore I demand:

1. Immediate cessation of such practices by Schufa and telecommunications companies.

2. Compensation for caused damages and injuries, and to issue me immediately with a Decision and to make my demand for compensation in the amount of 1,000,000 € legally binding.
3. Ensuring available internet access in accordance with my rights at affordable prices.
4. Drawing criminal consequences against the responsible entities for the misuse of personal data and discrimination.

All this evidence and my statement reveal a fundamental problem of systematic misuse of personal data and clearly point to unethical and unlawful practices which must be resolved through judicial and criminal means.

Telekom uses your data with the aim of refusing to provide services at a reasonable price and pushes you towards a much more expensive solution, which clearly suggests that their so-called "legitimate interest" is nothing other than an attempt to maximise their profit at the expense of your fundamental rights.

Direct evidence:

1. Violations of law – GDPR, which prescribes that the processing of personal data must comply with the principles of transparency, information and lawfulness.
2. Discrimination – Disadvantaging the consumer on the basis of their creditworthiness, which is a clear

violation of the principles of non-discrimination.

1. Intention to harm – Clearly formulated steps to coerce customers into accepting disadvantageous solutions.

This is a perfect example of how the attempt at "legitimate interest" is exploited as a pretext for justifying unethical and unlawful practices. There can be only one answer to this: unequivocal criminal responsibility before the law!

I have the right to ask the court to oblige Schufa by court order to provide evidence as to whether I gave them informed consent or not for the processing and provision of my personal data to a third party, namely a telecommunications company such as Telekom or O2

Telefónica. If Schufa does not submit such consent or cannot prove its existence, their processing and sharing of my data is unlawful, which is contrary to GDPR (specifically Articles 6 and 7 GDPR, which govern the lawfulness of processing and the conditions of consent).

This information is crucial in my claim for compensation, because it confirms that my personal data were used without my knowledge and consent, which has resulted in a violation of my rights. I ask the court to include this in my claim. If Schufa cannot prove the consent, **their argument about legitimate interest becomes merely an empty irrelevant illusion!**

For the above-stated reasons, evidence and facts it is indisputable that law and justice are on my side. The defendant companies mistakenly believe that their steps will remain covered by the government and that they will thereby be able to avoid legal sanctions and fines which, as is known, are generally not paid. However, if by 31.12.2024 they do not pay the amount of compensation I demand, this amount will after 1.1.2024 be increased to 30,000,000 €.

This increase will reflect not only their unwillingness to end the extensive cartel fraud, but also their continuing efforts to maximise profits at the expense of citizens of Germany and the EU. Such conduct unequivocally proves their depravity, and therefore my response will be appropriate, uncompromising, emphatic and synchronised. The notion that they can systematically rob citizens of Germany and the EU, damage consumers with impunity, violate their rights and at the same time avoid legal responsibility is illusory and absolutely unacceptable to me.

Many pieces of information appear in this document duplicated but intentionally always

in some different context for illustration and better understanding, which is why I ask
for your understanding.

With respect,

In Kumhausen 10.12.2024 Peter Ferenc.....

In Kumhausen, 10.12.2024

[Original signed QES — original language: Slovak/German]



Peter Ferenc

Dr. Wolf-Tassilo Böhm
Rechtsanwalt
E-Mail: wolf.boehm@lw.com

Lisa M. Hoops
Rechtsanwältin
E-Mail: lisa.hoops@lw.com

Die Welle
Reuterweg 20
60323 Frankfurt am Main
Tel: +49.69.6062.6000
Fax: +49.69.60626700
www.lw.com

Austin	München
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LATHAM & WATKINS LLP

Per beA

Landgericht Landshut
Maximilianstraße 22
84028 Landshut

20. November 2024
Unser Zeichen: 035279-0014(LHO)

Aktenzeichen: 23 O 2699/24

STELLUNGNAHME

In Sachen

Ferenc, Peter
Rammelkam 2,
84036 Kumhausen

SCHUFA Holding AG u.a.
Die Rechtsanwälten und
Rechtsanwälte der LATHAM &
WATKINS ^{LLP}

nehmen wir erneut zum Prozesskostenhilfeantrag des Antragstellers vom 17. Oktober 2024 („Antrag“) Stellung.

Die vom Antragsteller beabsichtigte Rechtsverfolgung scheint sich sowohl gegen die Telekom AG („Beklagte zu 1“) als auch gegen die SCHUFA Holding AG („Beklagte zu 2“) zu richten. Die Beklagte zu 2 nimmt lediglich zu den Ausführungen, die sie konkret betreffen, Stellung. Die übrigen Ausführungen bestreitet sie vorsorglich mit Nichtwissen. Auch insoweit dürfte der PKH Antrag sowohl unzulässig als auch unbegründet sein.

I. Einleitung

- 1 Gem. SS 114 Abs. I ZPO erhält eine Partei, die nach ihren persönlichen und wirtschaftlichen Verhältnissen die Kosten der Prozessführung nicht, nur zum Teil oder nur in Raten aufbringen kann, Prozesskostenhilfe, wenn die beabsichtigte Rechtsverfolgung hinreichende Aussicht auf Erfolg bietet und nicht mutwillig erscheint.
- 2 Der Antrag auf Gewährung von Prozesskostenhilfe ist abzulehnen. Der Antrag entspricht bereits nicht den Anforderungen der SS 114 ff. ZPO, da der Antragsteller jedenfalls seine wirtschaftlichen Verhältnisse gem. ss 115 ZPO nicht darlegt. Zudem hat die beabsichtigte Rechtsverfolgung keine Aussicht auf Erfolg. Die Klage ist bereits unzulässig, jedenfalls aber unbegründet.

II. Antrag auf Prozesskostenhilfe bereits unzulässig

- 3 Der Antrag ist bereits unzulässig, da der Antragsteller seine persönlichen und wirtschaftlichen Verhältnisse nicht offen gelegt hat, vgl. ss 117 Abs. 2 ZPO.
- 4 Gemäß SS 115 ZPO trägt der Antragsteller jedoch die Darlegungs- und Beweislast für seine Bedürftigkeit.

Vgl. dazu Seiler in Thomas/Putzo, 41. Auflage, 2020, ZPO 115 Rn. 1.

- 5 Des Weiteren stellt der Antragsteller dem Gericht entgegen ss 117 Abs. I S. 2 ZPO keine Beweismittel zur Verfügung. Die auf Seite 2 des Entwurfs der Klageschrift benannten Beweis in Form von PDF-Dateien liegen jedenfalls der Beklagten zu 2) nicht vor.

III. Beabsichtigte Rechtsverfolgung hat jedenfalls keine Aussicht auf Erfolg

- 6 Selbst wenn das Gericht entgegen den obigen Ausführungen von einer Zulässigkeit des Antrag ausgehen sollte (quod non), wäre der Antrag jedenfalls wegen mangelnder Erfolgsaussichten in der Hauptsache abzulehnen.
- 7 Hinreichende Erfolgsaussicht besteht dann, wenn das Gericht den Rechtsstandpunkt des Antragsstellers auf Grund ihrer Sachdarstellung und der vorhandenen Unterlagen mindestens für vertretbar hält und von der Möglichkeit der Beweisführung überzeugt ist.

Greimer in Zöller, 30. Auflage 2014, ZPO 114 Rn. 19.

- 8 Diese hinreichende Erfolgsaussicht ist vorliegend nicht gegeben. Die Klage ist bereits unzulässig, da sie die Anforderungen des ss 253 Abs. 2 ZPO genügt. Die Klageschrift enthält bereits keinen hinreichend bestimmten Antrag.
- 9 Das tatsächliche Klagebegehren des Antragsstellers geht nicht aus der Klageschrift hervor. Der Antragssteller scheint Schadensersatz von der Beklagten zu 2 in Höhe von EUR 500.000,00

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gem. Art. 82 DS-GVO zu fordern, die ihm durch die unrechtmäßige Verarbeitung seiner personenbezogenen Daten entstandensein soll (vgl. Klage, S. 11).

- 10 Die Klage ist offensichtlich unbegründet. In der Klageschrift fehlt bereits jeglicher substantiierter Sachvortrag dazu, durch welche Verarbeitung personenbezogener Daten des Antragstellers die Beklagte zu 2) wann und wie gegen die DS-GVO verstoßen haben soll. Die gesamten Ausführungen des Antragstellers sind vollständig unsubstantiierten und liegen neben der Sache.
- 11 Die Ausführungen des Antragstellers zu seinem angeblich entstanden Schaden sind ebenfalls unsubstantiiert und nicht einlassungsfähig. Der Antragsteller behauptet, er fordere Entschädigung für

„den Zeitverlust, den ich bei der Aufdeckung dieses Betrugs erlitten habe, für psychische Schäden, lebenslange Traumata und Diebstähle, die die beklagten Betrüger an mir und an den Massen der deutschen Bürger, einschließlich Ihnen, Herr Richter, durch die unrechtmäßige Nichtbereitstellung einer grundlegenden Internetverbindung und überhöhte Preise für die angebotenen Dienstleistungen aufgrund des bestehenden Kartells zwischen den Telekommunikationsunternehmen begangen haben und weiterhin begehen. Das Kartell führt aufgrund des Fehlens von Wettbewerb zu hohen Preisen.“ (Klageschrift, S. 11)

Der Antragsteller begründet diese Forderung jedoch nicht weiter und legt keine entsprechenden Nachweise vor.

IV. Datenverarbeitung der Beklagten zu 2 jedenfalls rechtmäßig

- 12 Nur der Vollständigkeit halber weist die Beklagte zu 2 darauf hin, dass sie die Daten des Antragstellers rechtmäßig im Sinne der DS-GVO verarbeitet. Sie stützt ihre Verarbeitung rechtmäßig auf Art. 6 Abs. 1 lit. f) DS-GVO. Der Anwendungsbereich des Art. 22 DSGVO ist bereits nicht eröffnet.
- 13 Die Beklagte ist eine Gemeinschaftseinrichtung der kreditgebenden Wirtschaft in Deutschland. Aufgabe der Beklagten ist es, ihre Vertragspartner mit Auskünften bei der Beurteilung der Kreditwürdigkeit von potentiellen oder bestehenden Kunden kreditrelevanter Geschäfte zu unterstützen. Hierfür unterhält die Beklagte eine Datenbank mit über 68 Millionen Datensätzen über in Deutschland wirtschaftlich aktive Personen.
- 14 Die Vertragspartner der Beklagten übermitteln der Beklagten regelmäßig relevante Daten aus Geschäftsverbindungen mit ihren Kunden (wie beispielsweise Informationen über zuverlässig oder unzuverlässig erfüllte Kredite). Die Beklagte speichert die ihr übermittelten Daten, um ihren Vertragspartnern wiederum Auskünfte erteilen zu können. Auskünfte erteilt die Beklagte jedoch nur, wenn die Vertragspartner ein berechtigtes Interesse geltend machen (wie beispielsweise beim Vorliegen eines Kreditantrags).
- 15 Mit Hilfe der Auskunft der Beklagten sowie weiterer vom potentiellen oder bestehenden Kunden vorgelegter oder dem Vertragspartner anderweitig bekannter Informationen kann der

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Vermögensplatter das statistische Risiko von Zahlungsstörungen für das konkrete kreditrelevante Geschäft ermitteln. Dies entspricht den Vorgaben des § 18a Abs. 3 KWG, der ausdrücklich die Berücksichtigung von Informationen von Auskunftgebern vorsieht.¹

- 16 Dementsprechend verarbeitet die Beklagte personenbezogene Daten des Antragstellers in zulässiger Weise gemäß den Anforderungen der DS-GVO, insbesondere zur Wahrung der berechtigten Interessen ihrer Vertragspartner, der Allgemeinheit und von sich selbst. Der Entwurf der Klageschrift enthält keinerlei substantiierten Sachvortrag, der eine andere Bewertung auch nur nahelegen würde.
- 17 Nach alledem ist der Antrag des Klägers auf Prozesskostenhilfe bereits unzulässig und jedenfalls aber mangels Erfolgsaussichten in der Hauptsache abzulehnen.

Lisa M. Hoops
Rechtsanwältin
LATHAM & WATKINS LLP

Zu Einzelheiten der Kreditwürdigkeitsprüfung und der Umsetzung der europarechtlichen Vorgaben in Deutschland findet sich (im Zeitpunkt der Erstellung dieses Schriftsatzes) ein hilfreicher Überblick bei www.wikipedia.org unter dem Stichwort „Kreditwürdigkeitsprüfung“

Y/9C3 00BCcJigkigtspr (yC3 00BCfung),

LATHAM&WATKINSLLP

Düsseldorf

BcnrathorStraßc 18-20
40213 Düsseldorf
Tel: +49.211.8828.4600
Fax: +49.211.8828.4699

Frankfurt

Reuterweg 20
60323 Frankfurtam Main
Tel: +49.69.6062.6000
Fax: +49.69.6062.6700

Hamburg

Warburgstraße 50
20354 Hamburg
Tel: +49.40.4140.30
Fax: +49.40.4140.3130

München

Maximilianstraße13
80539 München
Tel: +49.89.2080.3.8000
Fax: +49.89.2080.3.8080

Düsseldorf

Dr. Michael J. Esser, I-L.M. (Univ. of Pennsylvania)
Dr. Ingo Strauss
Dr. Heiko Gotsche, LL.M. (London School of Economics)
Dr. Sebastian Max Hauser
Dr. Jan Christoph Höft
Dr. Lucas Schweitzer, LL.M. (Univ. of Durham)

Frankfurt

Oliver Felsenstein, LL.M. (Univ. of Miami)
Susanne Decker, LL.M. (College of Europe, Bruges)
Alexandra Hagelüken, LL.M. (McGill Univ.), Solicitor (England & Wales)
Sibylle Münch
Burc Hesse, LL.M. (Univ. of Munster)
Thomas Vogel⁵
Dr. Susan Kempe-Müller
Dr. Markus E. Krüger, LL.M. (New York Univ.), Attorney at Law (N.Y.)
Tim Wybitul¹
Dr. Christoph A. Baus
Dr. Carsten Loll, LL.M. (King's College, London)
Dr. Leil U. Schrader
Dr. Torsten Volkholz, LL.M. (Tulane Univ.)
Dr. Alexander Lentz
Dr. Sebastian Pauls, LL.M. (New York Univ.)
Axel Schiemann, Betriebswirt (BA)
Dr. Sebastian Max Hauser
Otto von Gruben, LL.M. (Univ. of Pennsylvania)
Dr. Alexander Stefan Rieger
ChristMann
Jan Penselin, LL.B. (Bucerius Law School)
Dr. Maximilian Platzner
Dr. Deniz Tschammler, Executive MBA (HSG), LL.M. (KCL)
Dr. Alena McCorkle, M.A.
Frank Bierwirth
Mathias Fischer, LL.M. (Univ. of San Diego)
Jochim Grittmann, Diplom-Verwaltungswirt (FH)
Cora Grannemann, LL.M. (Univ. of Munster), Solicitor (England & Wales)
Gregory Walker, LL.M. (Univ. of Augsburg), Attorney at Law (N.Y.)⁵
Dr. Wolf-Tassilo Böhm¹
Dr. Daniel Splittgerberr
Sven Nickel

Hamburg

Dr. Henning C. Schneider
Christoph W. G. Engeler, LL.M. (Univ. of Chicago), Attorney at Law (N.Y.)
Frank Grell, LL.M. (Univ. of San Diego)
Dr. Tobias Klass, Dipl.-Kfm.^{3 4}
Dr. Dirk Kocher, LL.M. (Univ. of Helsinki)
Dr. Christoph A. Baus
Dr. Torsten Volkholz, LL.M. (Tulane Univ.)
Dr. Jana Kristina Dammann de Chapt. LL.M. (Univ. of Miami)
Stefan Patzer, LL.M. (George Washington Univ.), Dipl.-Kfrü
Otto von Gruben, LL.M. (Univ. of Pennsylvania)
Verena Scevers, LL.M. (King's College, London)⁴
Dr. Andreas Lönner
Dr. Stefan Bartz, LL.B. (Bucerius Law School)
Dr. Jacob Fontaine

München

Dr. Rainer Traugott, LL.M. (Columbia Univ.)
Stefan Süß⁴
Dr. Rüdiger Mdlaun, Österreichischer Rechtsanwalt
Burc Hesse, LL.M. (Univ. of Münster)
Dr. Christian Jahn
Dr. Carsten Loll, LL.M. (King's College London)
Thomas Weitkamp, Solicitor (England & Wales)
Prof. Dr. Thomas Grützner
Dr. Tobias Leder, LL.M. (Duke Univ.), Attorney at Law (N.Y.)¹
Dr. Ull Kicker, LL.M. (New York Univ.)⁴
Dr. Sebastian Pauls, LL.M. (New York Univ.)
Dr. Anne Löhner, LL.M. (Columbia Univ.), Attorney at Law (N.Y.)
Dr. Stephan Hufnagel
Daniel Hierner⁴
Dr. Floridin Dehmel, LL.M. (Univ. Of Edinburgh)
Rainer Adlhart, LL.M. (Columbia Univ.), Attorney at Law (N.Y.),
Solicitor (England & Wales, Ireland)⁵

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